

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
WRIT PETITION NO. 3147 OF 2026

Arjun Mehta, Age 38 years,
Occupation: Business,
residing at Mumbai.

...Petitioner

VERSUS

1. State of Maharashtra,
Through the Principal Secretary,
Mumbai.

...Respondent No.1

2. Rohan Deshpande, Age 42 years,
residing at Mumbai.

...Respondent No.2

AFFIDAVIT IN REPLY ON BEHALF OF RESPONDENT NO. 2

I, Rohan Deshpande, Age 42 years, residing at Mumbai, the Respondent No.2 above named, do hereby solemnly affirm and state as under:

1. I say that I am the Respondent No.2 in the above Writ Petition and am well acquainted with the facts and circumstances of the case. I have perused the Petition and the documents annexed thereto and am competent to affirm this Affidavit in Reply.
2. At the outset, I deny each and every allegation, contention and submission made in the Writ Petition, save and except those specifically admitted herein. I say that the Petition is misconceived, devoid of merits and is liable to be dismissed in limine.
3. I say that the Petitioner has suppressed material facts and prior correspondence having a direct bearing on the controversy. The action complained of has been taken strictly in accordance with law and after following due procedure. No legal, constitutional or fundamental right of the Petitioner has been infringed.
4. With reference to the averments made in the Petition, I say that the same are false, incorrect and denied. The Petitioner has failed to make out any case warranting interference in the extraordinary writ jurisdiction of this Hon'ble Court. Hereto annexed and marked as **EXHIBIT-'A'** is a copy of the letter dated 12th March 2026 addressed by the Respondent No.2 to the Petitioner.
5. In the premises aforesaid, I say that the Writ Petition deserves to be dismissed with costs.

PRAYER

I therefore respectfully pray that this Hon'ble Court may be pleased to:

- (a) dismiss the present Writ Petition with costs;
- (b) refuse any interim or ad-interim relief sought by the Petitioner; and
- (c) grant such other and further reliefs as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

Solemnly affirmed at Mumbai

On this 5th day of September 2026

Before Me

DEPONENT

VERIFICATION

I, Rohan Deshpande, the Deponent above named, do hereby verify that the contents of paragraphs 1 to 5 and the Prayer above are true and correct to my knowledge and belief and that nothing material has been concealed therefrom.

Verified at Mumbai on this 5th day of September 2026.

DEPONENT

MEHTA & KULKARNI

Advocates for the Respondent No.2.